

TENTATIVE RULINGS

**DEPT. CX103
(657-622-5303)**

**Judge David A. Hoffer
June 01, 2026**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at <https://www.occourts.org/media-relations/aci.html>. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

Court Reporters: Parties must provide their own remote court reporters (unless they have a fee waiver). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	JCCP 5081 Finance of America Wage and Hour Cases	The tentative ruling is to continue the Final Report Hearing to November 23, 2026 at 1:30 p.m. to clarify that the amounts distributed by the administrator are consistent with the court's April 25, 2025 approval order and confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the

		Administrator's work is complete, and that the court's file thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date. On April 25, 2025, the court approved the \$160,000.00 PAGA-only settlement, and the following distributions: • \$53,333.33 to plaintiff's counsel for plaintiff's attorneys' fees; • \$1,500.00 to plaintiff's counsel for plaintiff's attorney costs; • \$5,000.00 to plaintiff as an enhancement award; • \$3,500.00 to the Administrator for administration fees; • \$72,500.00 to the LWDA as its share of PAGA penalties; and • \$24,166.67 to the aggrieved employees for their share of PAGA penalties. However, the administrator's declaration states that \$3,000.00 of the PAGA penalties that were payable to the LWDA and \$1,000.00 of the PAGA penalties that were payable to the aggrieved employees were instead distributed to the settlement administrator, giving the administrator \$7,500.00 instead of the \$3,500.00 approved by the court. The parties and the administrator must provide an explanation for this re-allocation of settlement funds without court approval. The court VACATES the December 8, 2025 OSC re: monetary sanctions against plaintiff's counsel for failure to file a final accounting report, as previously ordered. Plaintiff is ordered to give notice of this ruling to Defendant.
2	30-2020-01169774 Olsen vs. The City of Stanton	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement must be transmitted to the cy pres recipient, Mary's Kitchen. As Plaintiffs have shown that the administration of this settlement is complete, the court's file is now closed. Plaintiffs are ordered to give notice of this ruling to Defendant.

3	30-2012-01200991 Saavedra vs. Evergreen Alliance Golf Limited, L.P.	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement has been transmitted to the State Controller's Office's Unclaimed Property Fund. As Defendant has shown that the Administrator's work is complete, the court's file is now closed. Defendant is ordered to give notice of this ruling.
4	30-2022-01297827 Valencia vs. Mittera Group, Inc.	The tentative ruling is to continue the Final Report Hearing to January 25, 2027 at 1:30 p.m. to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the Administrator's work is complete, and that the court's file thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of this ruling to Defendant.
5	30-2023-201320697 Santa Cruz vs. Tectonic Transport	The tentative ruling is to continue the Final Report Hearing to January 25, 2027 at 1:30 p.m. to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the Administrator's work is complete, and that the court's file thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of this ruling to Defendant.
6	30-2018-00983513 Palacios vs. Weldek Inc.	The tentative ruling is to continue the hearing on Plaintiff Faustino Sanchez Palacios' ("Plaintiff") Motion for Final Approval of Class Action and PAGA Settlement to October 19, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be re-read) at least 16 days before the next hearing date.

	There is no explanation for the change in the number of class members to 232, when the number was estimated to be 195 at the preliminary approval stage. The parties have not identified the number of aggrieved employees included in this settlement. An invoice from the Administrator is required to support the \$8,000 Administrator fee request. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount or \$268,200.00, which the court finds fair, adequate and reasonable for the settlement of this size. No [Proposed] Order and Judgment was provided. The [Proposed] Order and Judgment must also provide how the parties will comply with CRC Rule 3.771(b), which states: "Notice of the judgment must be given to the class in the manner specified by the court." The notice may be included with the checks that are mailed to the class members or posted on the administrator's website. Counsel should propose a realistic Final Report Hearing date and include it in the [Proposed] Order and Judgment, taking into account the time deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The court usually sets these hearings nine months after settlement approval if the check cashing deadline is 180 days. The parties must report to the court the total amount that was actually paid to the class members. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff has not shown that he served the LWDA with his moving papers. Plaintiff is ordered to give notice of this ruling to the LWDA, and to Defendant, to serve the LWDA with his original moving papers as well as any new papers filed for future hearings, and to file a proof of service showing such compliance.
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7	30-2021-01192697 Hernandez vs. Amazon.com Services, LLC	The tentative ruling is to continue the hearing on Plaintiff Guillermo Hernandez’s (“Plaintiff”) Motion for Final Approval of Class Action and PAGA Settlement and Plaintiff’s Motion for Attorneys’ Fees, Costs, and Incentive Award to September 21, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court’s concerns (not fully revised papers that would have to be re-read) at least 16 days before the next hearing date. Despite the court’s previous Minute Order, the parties have failed to address the following issues: • The number of aggrieved employees included in the settlement is not provided. • The [Proposed] Order and Judgment must also provide how the parties will comply with CRC Rule 3.771 (b), which states: “Notice of the judgment must be given to the class in the manner specified by the court.” The notice may be included with the checks that are mailed to the class members or posted on the administrator’s website. • Paragraph 19 of the [Proposed] Order and Judgment must be removed as the dismissal of claims violates C.R.C., Rule 3.679(h). Plaintiff is ordered to give notice of this ruling.
8	30-2023-01344326 Anaya vs. Worldpac, Inc.	Plaintiff Carlos Anaya’s (“Plaintiff”) Motion for Final Approval of Class Action and PAGA Settlement is GRANTED IN PART. An enhancement award of \$5,000 is sufficient and proper for a class and settlement of this size, and based on plaintiff’s contribution to the case. The court also finds that an attorneys’ fee award totaling \$355,425.00 or 30% of the Gross Settlement Amount, which constitutes a 1.64 multiplier of the lodestar amount, is fair, adequate and reasonable for the class and settlement of this size, contingent nature of representation and the results achieved. The court concludes that the \$1,184,750.00 class action and PAGA settlement is fair, adequate and reasonable, and approves the following specific awards:

		• \$355,425.00 to plaintiff's counsel for plaintiff's attorneys' fees, reduced from the \$394,916.67 requested; • \$18,000.00 to plaintiff's counsel for plaintiff's litigation costs, as requested; • \$5,000.00 to Plaintiff Carlos Anaya as enhancement award, reduced from the \$10,000.00 requested; • \$14,550.00 to ILYM Group, Inc., the settlement administrator, as requested; and • \$56,250.00 to the LWDA for its share of PAGA penalties, as requested. The total amount that will be payable to all class members and aggrieved employees, if they are paid the amount to which they are entitled pursuant to the judgment, is \$735,525.00. The Final Accounting hearing is set for June 7, 2027 at 1:30 p.m. in Department CX103. At least sixteen (16) calendar days before the hearing, Class Counsel and the Settlement Administrator must submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment, and identifying the number and value of any uncashed checks, and the status of any unresolved issues. Within five (5) days of this ruling, Plaintiff shall provide the court with a revised Proposed Final Order and Judgment reflecting this ruling. Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.
9	30-2024-01383304 Margaritis vs. AAA Oil, Inc.	The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a \$530,000 class action and PAGA settlement. Subject to the submission of the document described below, the tentative ruling is to GRANT the motion as follows: \$5,000.00 for plaintiff's enhancement payment; \$159,000 for attorneys' fees; \$22,292.73 for litigation costs;

		\$7,250.00 for settlement administration costs; and \$50,000 total PAGA penalties (\$37,500 to LWDA). Plaintiff is ordered to submit by June 17, 2026 invoices supporting the expert (\$7,065) and mediation (\$11,000) costs for which reimbursement is sought. Additionally, counsel should provide documentation supporting any recent costs incurred, such as filing fees, as the court does not reimburse “anticipated” costs. Plaintiff is ordered to submit by June 17, 2026 a proposed order and judgment (and redline showing all changes) consistent with the above and with the following revisions: 1. Include the ROA number of the settlement and amendment. ROA 80 at 1. 2. The respective class and PAGA releases should be included. <i>Id.</i> ¶¶ 4, 10. 3. Papers are due 16 court days prior to the final accounting hearing. <i>Id.</i> ¶ 17. 4. A paragraph should be added providing that the court will retain jurisdiction to enforce the settlement pursuant to Civil Procedure Code section 664.6. 5. The following final paragraph should be added: “The court orders the parties and the settlement administrator to carry out their duties and obligations in accordance with terms of the settlement agreement.” The final accounting hearing is scheduled for June 21, 2027 at 1:30 p.m. in Department CX103. Plaintiff shall submit a final accounting report at least 16 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller’s Office under the unclaimed property law. If all funds are not fully and finally disbursed by the filing deadline, counsel must request a continuance.
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		Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
10	30-2022-01242308 Velasco vs. Warmel Management Company	The hearing on plaintiffs' motion for approval is CONTINUED to October 12, 2026 at 1:30 p.m. in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief must be filed at least 16 court days before the hearing and must address as necessary each of the below points. If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties must provide redlined copies of any revised documents, including all provisions of the settlement modified by amendment. The court has reviewed and considered the papers, including the supplemental papers filed in support of plaintiffs' motion for approval of a \$1,880,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The parties should insert the end date for the operative PAGA Period. ¶ 1.22; ROA 127 ¶ 17. 2. Plaintiffs should state their anticipated total compensation (including for any individual claims). 3. Plaintiffs should submit copies of any individual settlement agreements entered with defendant or any related entities and/or individuals. Notably, plaintiff Pereira states she entered a "separate settlement," which, unlike plaintiff Velasco's \$35,000 individual settlement, is not disclosed by counsel. <i>Id.</i> ¶ 8. 4. The "Released Parties" provision is overbroad. ¶ 1.31. It includes unrelated, ambiguous and/or unidentified third parties that should be identified or removed including "direct and/or indirect," "agents, representatives, attorneys, insurers, partners, investors, shareholders, administrators," "subsidiaries, affiliates, divisions, predecessors, successors, assigns, managing agents, related companies and joint venturers."

		5. Defendant should state in declaration(s) filed with the court whether they are aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case. If any such actions are known to exist, the declaration(s) shall state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 6. Plaintiffs' counsel seeks attorneys' fees totaling one-third of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys' fees award that exceeds 30% of the gross settlement amount. Plaintiffs' counsel should reduce the attorneys' fees or address in the supplemental filings whether any such unique circumstances exist here. 7. Plaintiffs' counsel Crosner Legal must support its \$8,367.41 cost request with a dated, itemized list of costs incurred, and support the mediation fee with an invoice. ROA 125 ¶ 31. 8. Plaintiffs' counsel Moon Law must support its \$21,004.98 cost request for mediation and expert fees with invoices. ROA 127 Ex. 4. <u>As to the notice:</u> 9. The notice letter should be revised consistent with the above. 10. Include both actions in title and change "action" to "actions" in both places in paragraph 1. At 1. 11. Include the PAGA Period end date. §§ 1, 4, 5. 12. Include the financial terms of the settlement. § 1 ¶ 2. 13. Insert "approval" between "settlement" and "hearing." § 1. 14. Include the court's department number. § 1. 15. The case description is inaccurate and needs to be revised. It should be brief, but reflect both cases. § 2. 16. The notice throughout should refer to plaintiffs, not plaintiff.
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		17. Delete “fully and completely.” § 2 ¶ 2. 18. Identify co-counsel for plaintiffs. § 3. 19. Same issue as above regarding “Released Parties.” § 4 ¶ 1 n.1. 20. Replace [DATE]” with “the date Defendant fully funds the entire Gross Settlement Amount,” and include an expected date. § 4 ¶ 1. 21. The following language should be deleted in § 4 ¶ 2: “Plaintiff, the Aggrieved Employees and the LWDA may discover facts in addition to those they now know or believe to be true with respect to the subject matter of the Released Claims, but upon the Court’s approval of the Settlement, Plaintiff, the LWDA and the Aggrieved Employees shall be deemed to have, and by operation of the Court’s Order approving the Settlement shall have, fully, finally and forever settled and released any and all of the Released Claims, without regard to subsequent discovery or existence of such different or additional facts. It is the intent of the Parties that the Settlement approval order entered by the Court shall have full res judicata effect and be final and binding upon the LWDA and PAGA Aggrieved Employees regarding the Released Claims. In light of the binding nature of a PAGA judgment on non-party employees pursuant to <i>Arias v. Sup. Ct.</i>, 46 Cal. 4th 969 (2009) and <i>Cardenas v. McLane Foodservice, Inc.</i>, 796 F.Supp.2d 1246 (2011),”. 22. Replace “those” with “penalties.” § 4 ¶ 3. 23. The financial terms are inaccurate. § 5 ¶ 1. Include the not to exceed amounts for the administrator and for litigation costs. Add that the fee award is “not to exceed.” 24. Identify the tax form (1099) aggrieved employees will receive. § 5 ¶ 4. 25. The settlement (¶ 7.3) provides that aggrieved employees may challenge the number of pay periods. This process should be explained in the notice. § 5 ¶ 4. 26. Will the settlement administrator maintain a website for this case? If so, the notice letter should provide the
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URL for case website and identify the key case documents (including the order and judgment) that will be posted on the website, and should state that judgment will be posted on the settlement administrator's website for at least 180 days. If no website is to be maintained, the notice must inform aggrieved employees how they will be notified when judgment is entered and how they may receive a copy.

§ 6

As to the proposed order and judgment:

27. The proposed order and judgment should be revised consistent with the above.
28. The document title and footer should reflect "[Proposed] Order Granting PAGA Settlement Approval and Judgment."
29. Include both case captions and both case numbers.
30. Include both actions in the preamble. At 1.
31. Identify and attach the settlement and any amendments as exhibits.
32. If the notice is to be provided in any language other than English, a certified copy of the translated notice (together with an English-language copy) should be attached to the proposed order and judgment as an exhibit.
33. Include the GSA and placeholders for the amounts of disbursements.
34. Plaintiffs' individual releases and the release by PAGA Counsel should be removed. ¶ 7(a), (c).
35. The same issues above apply to the "Released Parties." ¶ 7(d).
36. Remove paragraph 11.
37. The proposed order and judgment should state how notice of entry of the judgment will be given to the aggrieved employees.
38. Include a paragraph with a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has

		expired. The court holds final accounting hearings on Mondays at 1:30 p.m. The proposed order and judgment must state that counsel must submit a final administrator's report at least 16 days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. If all funds are not fully and finally disbursed, including uncashed checks, plaintiffs must request a continuance. 39. Add a final paragraph stating: "The court orders the parties and the Settlement Administrator to administer the settlement in accordance with the terms of the Settlement Agreement." Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents and file a proof of service.
11	30-2023-01351853 Alonzo vs. Reimagine Network	The hearing on plaintiffs' motion for approval is CONTINUED to October 12, 2026 at 1:30 p.m. in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief must be filed at least 16 days before the hearing and must address as necessary each of the below points. If required, an amendment to the settlement agreement must be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties must provide redlined copies of any revised documents, including all settlement provisions revised via amendment. The court has reviewed and considered the papers filed in support of plaintiffs' motion for approval of a \$215,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Counsel states that "on December 18, 2025, Plaintiffs filed a dismissal of Plaintiffs' class claims without prejudice and their individual claims with prejudice, leaving only the PAGA claims remaining in the FAC." ROA 72 ¶ 5. The ROA indicates no such filing. When will the request for dismissal of the class claims and

		accompanying declaration be filed? What are the reasons plaintiffs seek to dismiss the class claims? 2. The parties should provide the estimated high and low individual PAGA payments. 3. Plaintiffs should state their anticipated total compensation (including for any individual claims). Plaintiffs should submit copies of any individual settlement agreements. 4. Plaintiffs state defendant, rather than paying the additional \$77,249.50 due to an underestimated number of work weeks in the PAGA Period, elected to end the PAGA Period on 10-24-2024. ROA 72 ¶ 9; ROA 70 ¶ 16. The PAGA Period definition is thus incorrect. ¶ 1.23. 5. The “Released Parties” provision is overbroad. ¶ 1.29. It includes unrelated, ambiguous and/or unidentified third parties including “members, managing agents, attorneys, insurers, predecessors, successors, and assigns.” <i>Id.</i> 6. Defendant should state in a declaration filed with the court whether it is aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case. If any such actions are known to exist, the declaration must state the name and case number of any such case and the procedural status of that case and describe the impact of the settlement on that case. 7. Plaintiffs’ counsel seeks attorneys’ fees totaling one-third of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys’ fees award that exceeds 30% of the gross settlement amount. Plaintiffs’ counsel should reduce the attorneys’ fees or address in the supplemental filings whether any such unique circumstances exist here. 8. The time entries include no fewer than eight entries for work related to “individual settlements.” ROA 72 Ex. 4. Why should these hours be counted for purposes of the lodestar, i.e., what benefit(s) do aggrieved employees derive from plaintiffs’ individual
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		settlements? Relatedly, to what extent did the mediation include plaintiffs' individual settlements? 9. Plaintiffs' counsel seeks \$22,948.20 in costs. ROA 72 ¶ 19 Ex. 3. Plaintiff's counsel should submit invoices substantiating the mediation and expert charges. 10. To the extent plaintiffs seek reimbursement for the expert, plaintiffs must explain what the expert's contribution was to this case given the simplistic valuation analysis counsel has presented, notably without any reference or logical link to any expert analysis. ROA 72 ¶¶ 15-18 (asserting the "maximum" value of the PAGA claim was \$590,000, i.e., \$100 times 5,900 at-issue pay periods, and the "realistic" value was \$295,000, i.e., a 50% discount based on court's discretion). 11. Plaintiffs' counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages or confirm none exists. 12. The court does not reimburse costs for postage, copying, and the like, and those items should be removed. ROA 72 Ex. 3. <u>As to the notice letter:</u> 13. The notice letter should be revised consistent with the above. 14. The first paragraph is incorrectly spaced. 15. This case was not filed as PAGA-only case and the description of the case is thus incomplete. ¶¶ 2, 3. 16. The PAGA Period end date is inconsistent with counsel's declaration. If defendant shortened the PAGA Period based on the number of pay periods, this must be disclosed. 17. Plaintiffs' individual settlements must be disclosed. ¶ 5. 18. No injunction will be issued. Remove the sentence "As an Aggrieved Employee, you are legally barred from asserting any of the PAGA claims released under the Settlement that arose during the PAGA Period." ¶ 8.
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		Add “during the PAGA Period” to the last sentence of paragraph 8. 19. Address the same issue above regarding the “Released Parties.” ¶ 10. 20. Delete the “Action” and “Plaintiff’s Notice to the LWDA” paragraphs, neither of which is used otherwise in the notice. ¶¶ 11-12. 21. Inform aggrieved employees what happens to uncashed checks. 22. It should state how aggrieved employees will be given notice when judgment is entered. 23. Should the notice letter be translated into any language other than English? If so, a certified copy of the translated notice (together with an English-language copy) should be attached to the proposed order and judgment as an exhibit. <u>As to the proposed order and judgment:</u> 24. The proposed order and judgment should be revised consistent with the above. 25. The document title and footer should reflect “[Proposed] Order Granting Motion For Approval of PAGA Settlement and Judgment.” 26. The text should start on line 1 and align with the line numbers. 27. The settlement and any amendments thereto should be identified and attached as exhibits. The reference to an “Exhibit List” should be removed and, in any case, has not been filed. The same is true for the notice, including any translations. ¶ 4. 28. Remove the reference to the Kim Declaration, which, in any case, incorrectly indicates multiple paragraphs of the settlement. 29. Add “and the settlement administrator” between “Parties” and “to” in paragraph 3. 30. Delete paragraphs 14 and 16.
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		31. The proposed order and judgment should state how notice of entry of the judgment will be given to the aggrieved employees. 32. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Mondays at 1:30 p.m. The proposed order and judgment must state that counsel must submit a final administrator's report at least 16 days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiffs must also serve the LWDA with any supplemental brief and any amended settlement documents and file a proof of service.
14	30-2022-012685423 Garcia vs. Medina Lopez	Defendant Wilo's Express Inc. ("Wilo's") and Hugo Alexandro Median Lopez ("Lopez") (collectively, "Defendants") Motion to Dismiss the Action for Failure to Prosecute is GRANTED. This action is DISMISSED WITHOUT PREJUDICE. This action was filed on July 6, 2022. (ROA 2.) On September 5, 2024 (ROA 76), Plaintiffs filed a Notice of Settlement stating that the settlement was "Unconditional," not "Conditional." "Except as provided in (c) [conditional settlements] or (d) [compromise of claims of a minor or disabled person], each plaintiff or other party seeking affirmative relief must serve and file a request for dismissal of the entire case within 45 days after the date of settlement of the case." (Cal. R. Ct., R. 3.1385(b).) "If the plaintiff or other party required to serve and file the request for dismissal does not do so, the court must dismiss the entire case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed. (<i>Id.</i>) "If the settlement of the case involves the compromise of the claim of a minor or person with a disability, the court must not hold an order to show cause hearing under

		(b) before the court has held a hearing to approve the settlement, provided the parties have filed appropriate papers to seek court approval of the settlement.” (Cal. R. Ct., R. 3.1385(d).) Plaintiffs never filed a request for dismissal of the entire case and never filed any motion for approval of the settlement of the minors’ claims. On September 13, 2024, the court issued an Order to Show Cause re: Dismissal on Settled Case scheduled for 10/16/2024 at 09:00 AM in Department C16. (ROA 80.) On October 16, 2024, the Order to Show Cause re: Dismissal on Settled Case was continued to 01/14/2025 at 09:00 AM in Department C16 pursuant to party's motion. (ROA 83.) On January 14, 2025, there were no appearances by any party so the court dismissed the case in its entirety for Failure to Appear. (ROA 86.) The court ordered the entire action dismissed without prejudice. (<i>Id.</i>) On September 8, 2025, the court granted Plaintiffs’ Motion to Set Aside Order Dismissing this Matter for Failure to Appear At Hearing Pursuant to CCP § 473(b) and Reinstate OSC re: Dismissal on Settled Case. (ROA 98.) The court vacated the dismissal and reinstated the OSC re: Dismissal on Settled Case. (<i>Id.</i>) Defendants now ask that the court dismiss the action again based on Plaintiffs’ failure to prosecute the case pursuant to CCP § 583.410 and failure to settle the claims in this action aside from a settlement with plaintiff Osmani Fernando Garcia. “The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.” (CCP § 583.410.) “The court on its own motion or on motion of the defendant may dismiss an action under Code of Civil Procedure sections 583.410-583.430 for delay in prosecution if the action has not been brought to trial or conditionally settled within two years after the action was commenced against the defendant.” (Cal. R. Ct., R. 3.1340(a).) “The failure of the opposing party to serve and file a written opposition may be construed by the court as an admission that the motion is meritorious, and the court may grant the motion without a hearing on the merits.” (Cal. R. Ct., R. 3.1342(b).)
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		"Conditionally settled" means: (1) A settlement agreement conditions dismissal on the satisfactory completion of specified terms that are not to be fully performed within two years after the filing of the case; and (2) Notice of the settlement is filed with the court as provided in rule 3.1385. (Cal. R. Ct., R. 3.1340(c).) In this action, Plaintiffs have not propounded any written discovery, have not taken any depositions, have not designated any experts, and have not appeared to have investigated their claims. Now it appears Plaintiffs have also not acted diligently in settling their claims with Defendant. Plaintiffs have also failed to oppose this Motion. Under these circumstances, the court finds that Plaintiffs have unreasonably delayed in prosecuting their claims. As Plaintiffs have not brought this action to trial nor conditionally settled the action within two years after the action was commenced, and as Plaintiffs did not oppose this Motion, the court grants Defendants' Motion to Dismiss, and hereby DISMISSES this action without prejudice. The court DENIES AS MOOT Defendants' alternative Motion to Enforce Settlement Agreement. The court also VACATES the OSC re: Dismissal on Settled Case. Defendants are ordered to give notice of this ruling to Plaintiffs.
15	30-2024-01428283 Winer vs. Phase II Systems	Plaintiff Christopher Winer's ("Plaintiff") Application of Leigh S. Montgomery ("Applicant") to Appear as Counsel Pro Hac Vice is GRANTED. On or before the anniversary of the date of this order, if Applicant remains counsel for Plaintiff, Plaintiff must pay a renewal fee of five hundred dollars (\$500). (Gov. Code § 70617(e)(2).) The court VACATES the April 13, 2026 Order to Show Cause why the court should not impose monetary sanctions against plaintiff's counsel for failing to comply with the court's February 2, 2026 order.

		Plaintiff is ordered to give notice of this ruling.
16	30-2025-01532976 Chaffin vs. Socal Superbikes	The preliminary ruling is that plaintiff Daniel Chaffin's unopposed motion will be GRANTED upon resolution of the issues below. The court has the following questions and concerns that plaintiff must address in an amended proposed order which plaintiff must provide within five (5) days of this ruling: 1. Add page and paragraph numbers to the Notice. 2. The Notice should be identified and attached to the proposed order as an exhibit. ROA 61 ¶ 2. 3. The proposed order must identify the correct judicial officer and remove the attorney information on the caption page. 4. The footer of the proposed order should reflect the full document title.
17	30-2018-00982195 Aresh vs. Hunt	Continued to 6/10/26
18	30-2021-01186203 Henkin vs. Mikles	Continued to 6/10/26